

24TRCV02558 24TRCV02558

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Case Number: 24TRCV02558 Hearing Date: August 11, 2026 Dept: B

Moving Parties: Defendants Franciss

Zamora, D.D.S., Dental Corp. and Franciss Zamora, D.D.S.

Responding Party: Plaintiff Marisol Rincon

Motion

for Summary Judgment or, in the Alternative, for Summary Adjudication

INTRODUCTION

Defendants request that the Court enter summary judgment in their favor and against plaintiff pursuant to CCP §437c on the ground that there is no triable issue of material fact and defendants are entitled to judgment as a matter of law.

Alternatively, defendants seek summary adjudication as to each cause of action. The Court considered the moving papers, opposition, and reply papers. The motion is DENIED.

BACKGROUND

On August 1, 2024, plaintiff Marisol Rincon filed a complaint against Dentista Francis Zamora DDS and Dr. Francis Zamora alleging seven causes of action based on dental malpractice.

On May 1, 2025, the Court sustained without leave to amend the demurrer as to the third, fourth, fifth, and seventh causes of action. Plaintiff was ordered to withdraw her request for punitive damages.

On May 20, 2025, plaintiff filed a first amended complaint for (1) dental malpractice, (2) lack of informed consent, and (3) breach of fiduciary duties.

FACTS

On February 13, 2020, plaintiff had her first dental visit at Dr. Zamora's office. Defendants' Separate Statement of Undisputed Material Facts ("DUMF") 1. At the first visit, Dr. Zamora advised plaintiff she needed root canals in her upper anterior teeth nos. 7-10. DUMF 2. The root canals were performed on July 9, 2020. Defendants' Ex. A at 1. At that visit, Dr. Zamora prescribed plaintiff amoxicillin. DUMF 6. Plaintiff's next visit occurred on July 13, 2020. DUMF 7. After that, she had appointments with Dr. Zamora on September 17, 2020, and January 19, 2021. Defendants' Ex. A at 1. Plaintiff did not see a dentist again until March 1, 2022. DUMF 11.

On March 1, 2022, plaintiff visited Dr. Zamora. DUMF 14, 15. On March 28, 2023, plaintiff visited Dr. Zamora for treatment on a loose bridge. DUMF 16. On April 11, 2023, plaintiff visited Dr. Zamora and Dr. Zamora created a treatment plan, which plaintiff accepted, "calling for Dr. Zamora to place four new crowns" on plaintiff's upper anterior teeth, which had previously received root canals. DUMF 17. On May 11, 2023, plaintiff presented with symptoms as to one of the upper anterior teeth (tooth no. 8). Dr. Zamora's chart states that symptoms were noted as "discomfort." DUMF 18. Upon examining tooth no. 8, as the tooth had a prior root canal, Dr. Zamora referred plaintiff to an endodontic specialist. DUMF 19.

Sometime in 2023, plaintiff went to a hospital and had a dental abscess drained. DUMF 23. Subsequently, sometime prior to September 15, 2023, plaintiff went to Orange Coast Endodontics in Irvine. At that office, an endodontist provided plaintiff further root canal treatment on all of plaintiff's upper anterior teeth. DUMF 24. During this treatment, according to plaintiff, the endodontist advised plaintiff she had a retained separated file in tooth no. 7. DUMF 25.

On September 15, 2023, plaintiff was seen by Dr. Zamora and reported having had root canal therapy from an endodontist. DUMF 20.

On September 15, 2023, Dr. Zamora placed some filling material on tooth no. 8. DUMF 21.

STANDARD OF REVIEW

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal. 4th 826, 843. “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” *Adler v. Manor Healthcare Corp.* (1992) 7 Cal. App. 4th 1110, 1119.

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal. App. 4th 1510, 1519. A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” CCP § 437c(p)(2). “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” CCP § 437c(p)(2). “If the plaintiff cannot do so, summary judgment should be granted.” *Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal. App. 4th 463, 467.

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” *Avivi*, 159 Cal. App. 4th at 467; CCP §437c(c).

ANALYSIS

Defendants argue that the three causes of action in the FAC are barred by the statute of limitations under CCP §340.5.

Under CCP §340.5, "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. In no event shall the time for commencement of legal action exceed three years unless tolled for any of the following: (1) upon proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body, which has no therapeutic or diagnostic purpose or effect, in the person of the injured person. . . ."

"It is said the statutory 'foreign body' exception only tolls the three-year outside limitation period and not the one-year 'discovery' period. What this means, of course, is that the 'foreign body' exception in section 340.5 lifts the three-year outside limit entirely if a nontherapeutic 'foreign body' has been left inside a patient. It gives that patient an unlimited time to discover or to use reasonable diligence to discover the presence of the 'foreign body.' But once the patient discovers or through reasonable diligence would have discovered the 'foreign body' and its role in her injury she only has one year to file her lawsuit against the practitioners responsible for leaving the 'foreign body' inside her. That is, the patient is not free to completely ignore the statute of limitations just because she finds out her doctor left something inside her body which is causing her harm. She must still act within one year of her discovery the 'foreign body' exists and is the negligent cause of her injury." *Ashworth v. Mem'l Hosp.* (1988) 206 Cal. App. 3d 1046, 1058 (citation omitted).

The parties do not dispute that July 9, 2020 is when a file was left in plaintiff's tooth during a root canal procedure. As the file is a nontherapeutic "foreign body," plaintiff had one year to file the complaint upon discovery of the "foreign body" file. Defendant's own filings present a dispute of material facts as to when plaintiff discovered the presence of the file. Defendants' clinical notes state that plaintiff was informed that part of a file was left

in her tooth during the root canal and was unable to be retrieved. Defendants' Ex. A at 1. In their undisputed facts, defendants

acknowledge that plaintiff testified during her deposition that the endodontist told her she had a retained separated file in her tooth. DUMF 25.

Plaintiff testified that she did not know about the file stuck in her tooth until the endodontist told her.

Defendants' Ex. C at 105. That visit was sometime in 2023. The complaint was filed on August 1, 2024.

If plaintiff first learned that a file was left in her tooth on July 9, 2020, then her causes of action are barred by the statute of limitations. If, however, she did not learn until her visit with the endodontist in 2023, then she had one year from that date to file her claims. Defendants have not identified the precise date of the endodontist visit.

Defendants argue that plaintiff has not explained earlier statements implying that she was informed of the file left in her tooth. They cite paragraph 83 of the original complaint and her response to special interrogatory #16. In both places, plaintiff states: "The leaving of the file was explained to

Plaintiff as a non-complication procedure."

Complaint, ¶ 83; Ex. H at SROG 16.

This statement does not indicate when plaintiff was informed that a file was left in her tooth, which is the critical inquiry.

Defendants further argue that plaintiff discovered, or reasonably should have discovered, that a file was left in her tooth because plaintiff testified she believed Dr. Zamora was "negligent in dealing with plaintiff's complaints of pain" in the visits after her root canals. At her deposition, plaintiff testified that she thought Dr. Zamora was negligent with respect to her concerns about ongoing pain that she attributed to her root canals and that Dr. Zamora did not do enough to address her concerns. Defendants' Ex. C at 80. This is not evidence that plaintiff thought Dr. Zamora was negligent in the performance of the root canal, nor does it prove that plaintiff knew or had reason to suspect that a foreign body had been left in her tooth.

See *Ashworth v. Mem'l Hosp.*, supra, 206 Cal.App.3d 1046, 1057 (explaining that the relevant question for purposes of the statute of limitations is "when did plaintiff discover or in the exercise of reasonable diligence should have discovered" that the foreign body was improperly left in

the plaintiff's body).

Defendants have failed to meet their burden that the complaint is barred by the statute of limitations under CCP §340.5. Because defendants have failed to satisfy their burden, no burden shifts to plaintiff.

Accordingly, plaintiff's declaration in opposition to the motion, and defendants' objections thereto, are MOOT.

ORDER

Defendants' objections to plaintiff's declaration in support of her opposition to the motion are MOOT.

The motion for summary judgment/adjudication is DENIED.

Plaintiff is ordered to give notice.